

Bevilacqua Builds

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City Council
City of Haverhill
4 Summer Street
Haverhill, MA 01830

Special Permit Application – 16 Margin Street, Haverhill, MA City Council Rules and Regulations for Special Permits Information Required

Dear Members of the City Council:

The Applicant, Francis Bevilacqua of Bevi Builds II LLC, hereby submits this narrative in support of a Petition for a Special Permit pursuant to Chapter 255 (Zoning Ordinance), Section 10.4.2 of the City of Haverhill Zoning Ordinance, for the construction of a new three-unit, side-by-side condominium triplex at 16 Margin Street, Haverhill, Massachusetts (Assessor's Parcel 505-248-3). The subject parcel is located within the Residential Urban (RU) Zoning District. A three-family dwelling in the RU District requires a Special Permit from the City Council sitting as the Special Permit Granting Authority (SPGA). The following responses address the General Special Permit Criteria set forth in Section 10.4.2 and the Site Development Standards set forth in Section 6.3.3.

General Criteria: General Special Permit Criteria

1. Describe the proposed project in detail, including all proposed uses, activities, buildings, and structures.

The Applicant proposes to construct a new three-unit, side-by-side condominium triplex on the currently vacant parcel at 16 Margin Street, Haverhill, Massachusetts (Parcel 505-248-3). The parcel contains approximately 14,375 square feet (0.33 acres) and fronts on Margin Street, with the rear of the lot facing the Merrimack River. The proposed building will measure 78 feet wide by 40 feet deep, yielding a total building footprint of 3,120 square feet and a lot coverage of 21.7 percent, well within the maximum 30 percent permitted in the RU District. Each of the three attached residential units will be 26 feet wide and will consist of a ground floor measuring 26

feet by 40 feet and a second floor measuring 26 feet by 28 feet, for a gross floor area of approximately 1,768 square feet and a net livable area of approximately 1,568 square feet per unit. Each unit will contain three bedrooms, two and one-half bathrooms, a single-car attached garage with a nine-foot door, and a rear sliding glass door opening to a private patio. The three units will be organized under a condominium form of ownership, promoting individual homeownership within a market-rate residential development. No commercial uses are proposed; the project is entirely residential in character.

2. Describe the site and its surroundings, including the size and shape of the lot, existing uses on the site, adjacent uses, and zoning.

The subject parcel at 16 Margin Street is a vacant, undeveloped lot containing approximately 14,375 square feet (0.33 acres) situated within the Residential Urban (RU) Zoning District of the City of Haverhill. The lot runs diagonally to Margin Street, with street frontage along the northerly side and the rear of the lot facing the Merrimack River. The parcel is currently free of structures, impervious surfaces, and active uses. The surrounding neighborhood is predominantly residential, consistent with the RU designation, and includes single-family and multi-family dwellings that reflect the established urban residential character of this section of Haverhill. The proximity of the rear lot line to the Merrimack River adds scenic value to the site and is a notable amenity for prospective residents. A registered survey will confirm the precise location of the rear lot line relative to any applicable wetlands boundary or riverfront setback, and the project will be designed in full compliance with all such requirements. City water and sewer infrastructure are available in Margin Street.

3. Describe the proposed access, parking, and circulation, including the number and location of parking spaces, the width of driveways, and the proposed circulation pattern.

Vehicular access to the project will be provided via a shared driveway from Margin Street serving the three attached garage units. Each residential unit will be provided with a single-car attached garage having a nine-foot-wide door, satisfying the minimum parking requirement of one space per dwelling unit (three spaces total). The shared driveway will be designed to provide safe ingress and egress from Margin Street with adequate sight distances in conformance with applicable standards. Additional on-street parking is available along Margin Street to accommodate guest vehicles. The applicant will work with the City's engineering staff to ensure that the driveway configuration and apron comply with all applicable street opening and curb cut requirements.

4. Describe the proposed utilities, including water supply, sewage disposal, storm drainage, and other utilities.

The proposed project will connect to existing municipal water and sewer infrastructure available in Margin Street. Water service will be provided through a new connection to the City water main, and sanitary sewer flows will be directed to the City sewer system via a new lateral, all in conformance with the requirements of the Haverhill Department of Public Works. No on-site septic system is proposed or required. Stormwater from the building roofs and impervious surfaces will be managed through a site-specific stormwater management system designed in accordance with the Massachusetts Stormwater Management Standards. The Applicant acknowledges the proximity of the Merrimack River and is committed to ensuring that post-development stormwater runoff rates do not exceed pre-development conditions and that best management practices are employed to protect water quality. Final utility plans will be prepared by a licensed professional engineer.

5. Describe the proposed landscaping, screening, and buffering, including the location, type, and size of proposed plantings.

The Applicant proposes a landscaping plan that complements the residential character of the neighborhood and reinforces the visual relationship between the building and Margin Street. Foundation plantings will be provided along the front facade, and each unit's private rear patio area will be defined with lawn and planting beds appropriate for residential enjoyment of the Merrimack River setting. Side yard areas will be planted with a combination of shrubs and ornamental trees to provide visual separation from adjoining properties. Street trees will be planted within the front yard area in conformance with the City's street tree requirements. All plantings will consist of species appropriate to the New England climate and the soil and moisture conditions present near the Merrimack River. The final landscaping plan will be submitted as part of the application package.

6. Describe the proposed signage, including the location, size, type, and illumination of all signs.

No commercial signage is proposed in connection with this project. The development is entirely residential in nature, and no externally illuminated signage, freestanding signs, or wall signs are planned. Modest address numerals identifying each individual condominium unit will be provided in conformance with applicable addressing standards and emergency access requirements. Any signage installed on the property will comply with the dimensional and illumination requirements of the Haverhill Sign Ordinance.

7. Describe any other features of the proposed project that may be relevant to the Council's review.

The proposed project represents a significant investment in the City of Haverhill by a local developer committed to creating quality owner-occupied housing in an established residential

neighborhood. The subject parcel is currently vacant and generates minimal tax revenue for the City. The development of three market-rate condominium units will substantially increase the assessed value of the parcel and produce meaningful new tax revenue for the City. The condominium ownership structure promotes homeownership and long-term residential stability in the neighborhood. The rear-facing orientation of the private patios takes advantage of the scenic Merrimack River setting as a project amenity while encouraging sensitive development at the riverfront.

Specific Findings Under Zoning Ordinance Section 10.4.2

8. Community needs served by the proposal.

9. The City of Haverhill faces an ongoing need for quality owner-occupied housing in its established residential neighborhoods. The proposed three-unit condominium triplex directly addresses this need by creating three new for-sale residential units on a currently vacant urban infill parcel that is already served by municipal utilities. The project furthers the City's housing production goals and provides prospective homebuyers with a high-quality economical market-rate option in a desirable Merrimack River-adjacent neighborhood.

10. Traffic and pedestrian flow and safety, including parking and loading.

11. Three market-rate residential condominium units are expected to generate a very limited number of daily vehicle trips consistent with standard residential trip generation rates — approximately 29 daily vehicle trips and 3 peak-hour trips — a volume easily absorbed by the existing capacity of Margin Street without any measurable impact on traffic operations. Each unit is provided with a single-car attached garage, ensuring that all required off-street parking is provided on-site. The shared driveway has been designed to accommodate safe ingress and egress, and pedestrian walkways will connect each unit's front entry to the public sidewalk on Margin Street.

12. Adequacy of utilities and other public services.

13. Municipal water and sewer service are available in Margin Street, and the proposed project will connect to these existing systems. No extension of new utility infrastructure beyond the property line is required. Each unit will be independently metered for water and electricity. The City's fire and emergency services will have full access to all three units via the individual driveways and the front of each unit. City solid waste collection services are available on Margin Street. No special utility demands are anticipated beyond those expected for a standard three-unit residential building.

14. Neighborhood character and social structures.

15. The proposed three-unit condominium triplex is fully compatible with the residential character of the Margin Street neighborhood. The side-by-side unit configuration presents a residential street facade that complements the scale and massing of existing multi-family and single-family structures in the surrounding neighborhood. The condominium ownership structure ensures that residents have a long-term personal stake in the maintenance and upkeep of their units, promoting neighborhood stability. There will be no commercial activity, outdoor lighting nuisance, or noise generation inconsistent with a residential neighborhood.

16. Impacts on the natural environment.

17. The Applicant acknowledges that the rear of the subject parcel faces the Merrimack River and that wetlands, riverfront, and floodplain setback requirements may apply to that portion of the lot. A wetlands delineation survey and review under the Massachusetts Wetlands Protection Act will be conducted prior to construction, and the project will be designed in full compliance with all applicable resource area setbacks and performance standards. The proposed building footprint has been located on the front portion of the lot, maximizing separation from the riverfront area. Stormwater management will be designed to protect the Merrimack River from any increase in pollutant loading attributable to the project.

18. Potential fiscal impact, including impact on City services, tax base, and employment.

19. The proposed project will have a strongly positive fiscal impact on the City of Haverhill. The subject parcel is currently vacant and produces minimal property tax revenue. The construction of three market-rate condominium units will substantially increase the assessed value of the parcel and generate meaningful new property tax revenue on an ongoing basis. The project will also support local employment in the construction trades during the construction period, consistent with the Applicant's commitment to employing local subcontractors. No adverse impact on City services — schools, public safety, or public works — is anticipated beyond the minimal incremental demands of three additional residential units.

Specific Findings Under Zoning Ordinance Section 6.3.3

Site Development Standards for Multifamily Residential Review

Lighting:

Exterior lighting for the proposed development will be limited to what is necessary for residential safety and security. Fixture-mounted downward-directed LED luminaires will be installed at each

unit's front entry, garage door, and rear patio to provide safe nighttime illumination without spillover onto neighboring properties or toward the Merrimack River. All exterior lighting will be shielded and directed downward in conformance with the full-cutoff standard, and no fixture will produce glare visible from adjacent residential properties or from the river. The lighting plan will meet the minimum illumination levels required for safety while avoiding any light pollution inconsistent with the residential character of the neighborhood.

Noise:

The project will comply with city standard 6.3.3(2) as it pertains to noise. The proposed residential use will not generate noise beyond what is normal and expected for a residential condominium development. All mechanical equipment, including heating, cooling, and ventilation systems, will be selected and positioned to minimize exterior noise, and equipment will comply with applicable noise standards. No outdoor amplified sound, commercial activity, or other noise-generating use is associated with the proposed project. Construction activities will be limited to the hours permitted by the City of Haverhill noise ordinance, and the Applicant will take all reasonable measures to minimize construction-period noise impacts.

Landscaping:

The landscaping plan will be designed to enhance the residential character of the site and to provide appropriate screening, buffering, and amenity plantings consistent with the requirements of Section 6.3.3. Foundation plantings will soften the transition between the building and the front lawn area. The rear yard areas adjacent to each unit's private patio will be graded with fencing installed or low-maintenance shrubs suited to the riverside setting for privacy. All plant species selected will be native or non-invasive and appropriate for the climate and moisture conditions of a Merrimack River-adjacent site.

Stormwater Management:

The project will include a stormwater management system designed in full conformance with the Massachusetts Stormwater Management Standards and the City of Haverhill's applicable stormwater requirements. The system will incorporate best management practices (BMPs) for water quality treatment prior to any discharge. Given the proximity of the site to the Merrimack River, the Applicant is particularly attentive to water quality protection and will ensure that the post-development stormwater system provides no net increase in pollutant loading to the Merrimack River over pre-development conditions. Final stormwater management plans, including drainage calculations, will be prepared by a licensed professional engineer.

Site Development Standards:

The proposed project has been designed to comply with all applicable site development standards of the Haverhill Zoning Ordinance. The building setbacks — 20 feet from the front lot

line on Margin Street, 10 feet from each outer side lot line, and a minimum 30 feet from the rear lot line — will be confirmed by a registered land surveyor and reflected on the final site plan. The building height will not exceed 35 feet or 3.5 stories as required by the RU District. The lot coverage of 21.7 percent (3,120 square feet of building footprint on 14,375 square feet of lot area) is well within the 30 percent maximum. Impervious surfaces other than the building footprint and driveway will be minimized to preserve the site's landscaped character.

Pedestrian and Vehicular Access / Traffic Management:

The project has been designed to provide safe and efficient vehicular and pedestrian access from Margin Street. Three separate driveways will serve the three attached garages. Pedestrian walkways will connect each unit's front entry to each driveway on Margin Street. The project generates minimal traffic and will not measurably affect the operating level of service on Margin Street.

Aesthetics:

The proposed building has been designed to be visually compatible with the established residential character of the Margin Street neighborhood. The side-by-side condominium configuration breaks the 78-foot building width into three distinct 26-foot bays, each with its own entry, garage door, and window pattern, creating a facade articulation that reads as a row of individual residences rather than a single institutional building. Exterior materials will be selected to complement the residential aesthetic of the neighborhood and will be durable and low-maintenance. The rear elevation, visible from the Merrimack River, will be designed with equal care and will feature the sliding glass doors opening to the private patios as a prominent design element.

Utilities / Security / Emergency Systems:

All utilities serving the proposed development will be installed underground in conformance with the requirements of the applicable utility providers. Each unit will be independently metered for water and electricity, consistent with condominium ownership standards. The building will be constructed in full compliance with the Massachusetts State Building Code, including all required fire protection, egress, and emergency access provisions. The shared driveway will be designed to provide access for emergency vehicles, including fire apparatus, to all three units.

Other General Standards:

The proposed project will comply with all general standards applicable to multi-family residential development in the City of Haverhill, including the requirements of the Massachusetts State Building Code, the Massachusetts Plumbing and Electrical Codes, the Massachusetts Accessibility Code, and all applicable City of Haverhill ordinances. The Applicant will obtain all required local and state permits prior to commencement of construction, including any Order of Conditions

required under the Massachusetts Wetlands Protection Act. The Applicant will cooperate with all required inspections and will ensure that the completed project fully conforms to the plans and conditions approved by the SPGA.

Conclusions

Based upon all of the above as well as all the plans and other documents filed with this Application, Applicant believes this Petition meets all the following requirements under Chapter 255 Section 10.4.2 for a Special Permit:

- A. The specific site is an appropriate location for the proposed use, type and intensity of development. The subject parcel is a vacant urban infill site in the Residential Urban District, appropriately sized and located for a three-unit condominium triplex that meets all dimensional requirements of the RU District.
- B. The proposed use as developed will not adversely affect the neighborhood. The proposed three-unit residential condominium is compatible in use, scale, and character with the surrounding Residential Urban neighborhood, and the condominium ownership structure promotes long-term owner investment in the property.
- C. There will be no nuisance or serious hazard to vehicles or pedestrians. The project provides three off-street garage parking spaces, safe driveway access to Margin Street, and pedestrian walkways to each unit, and generates minimal residential traffic volumes.
- D. Adequate and appropriate facilities will be provided for the proper operation of the proposed use. Municipal water, municipal sewer, stormwater management, and all other required utilities and facilities will be provided in conformance with applicable codes and agency requirements.
- E. The proposed use is in harmony with the general purpose and intent of the Zoning Ordinance. A three-family dwelling is a use contemplated by the RU District upon grant of a Special Permit, and this project complies with all dimensional standards of the district and advances the City's housing and planning objectives.
- F. The proposed use complies with all applicable site development standards set forth in Section 6.3.3, including standards for lighting, noise, landscaping, stormwater management, pedestrian and vehicular access, aesthetics, and utilities.
- G. The proposed use is consistent with the City of Haverhill Comprehensive Plan and furthers the City's goals for quality owner-occupied housing, urban infill development, and responsible stewardship of the Merrimack River corridor.

Wherefore, the Petitioner would request that the Council approve this Special Permit.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'FJB III', written in a cursive style.

Francis J Bevilacqua III

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